

The Agency shall:

- Source, screen, and recommend qualified candidates that meet the Client's job requisition requirements.
- Verify employment history, qualifications, and conduct necessary background checks before referring candidates.
- Ensure that candidates are not submitted to the Client without their prior consent.

4. PAYMENT TERMS

- The Client shall pay the Agency a one-time fee of 7 % of the Candidate's annual gross salary (exclusive of bonuses and variable incentives) as specified in the appointment letter.
- The fee shall become payable only after the Candidate has completed three (3) months of continuous employment with the Client.
- If the candidate leaves within the first 3 months, and payment has been made, the Agency shall either provide a replacement at no additional cost or refund the full placement fee within 10 working days.
- The Client may ask the Agency to submit a proforma invoice monthly for accounting purposes (Agency shall not stake any payment against this proforma invoice) and a valid invoice once payment is due.

5. COVENANTS

The Agency represents and warrants that it shall:

- Provide only accurate and non-misleading candidate information.
- Maintain professional standards and comply with all applicable employment laws.
- Conduct background verification at its own cost prior to candidate placement.

The Client shall:

- Provide clear and accurate job requisitions including role details, qualifications, compensation, and reporting structure.
- Notify the Agency of the successful hiring of a Candidate within 14 days of appointment.
- Reject duplicate resumes already existing in its database within 48 hours of receipt from the Agency.

6. CONFIDENTIALITY

Both parties agree to maintain strict confidentiality of all information exchanged under this Agreement and not to disclose it to any third party without prior written consent and that is specifically designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including, but not limited to, the following: terms and conditions of this agreement (including pricing, client names, candidate names, tenure, CTC, location, spoc details and other terms set forth herein).

7. RELATIONSHIP & TERMINATION

The Agency is engaged as an independent contractor. Nothing in this Agreement shall create a partnership, joint venture, or employer-employee relationship between the Client and the Agency.